

1.12.2 Incorrect structural formula

In T 552/91 (OJ 1995, 100) the question arose as to whether and in what form protection could be obtained for groups of chemical substances and individual compounds whose originally disclosed structural formula proved incorrect. The applicant's main request was aimed at securing such protection by a further substance claim for the group of compounds with the structural formula subsequently found to be correct. This request was refused on the grounds that it would violate Art. 123(2) EPC 1973. The board held that the subsequently amended general formula gave the skilled person for the first time crucial information about the true chemical structure of the group of substances. This led to conclusions regarding properties that could be put to use. The information added to the application through the amendment of the general formula and relating to the true composition of the group of substances could not have been obtained from the application as originally filed (for decisions referring to T 552/91, see T 1074/97 and T 2003/07; for a further example of the correction of an error in a formula, see T 1728/07).

1.12.3 Amendment based on erroneous figure in the disclosure

In T 740/91 the board allowed a change in the upper limit of a range from 5 % to 0.6 %. The value of 0.6 % was explicitly disclosed in example IV. However, the patentee conceded that this figure had been inserted in error in place of the true figure of 0.49 %. The board concluded that the fact that the figure was wrong did not alter the fact that it was actually and credibly disclosed. It could thus be relied on as the basis for the new upper limit. This interpretation of Art. 123(2) EPC 1973 was consistent with its underlying intention, which was to protect the public from being faced at a later stage with claims which were wider in their scope than what had been disclosed in the application as filed, and published for the information of the public, including the applicant's competitors. In this case, any such competitor who had read the application as first published had formed the view that the originally claimed range of 0.1 to 5 % was too wide in the light of the prior art, and had thought that the broad claim could not validly be sustained. He would have seen at once that the highest figure for the cured epoxy resin given in any example was 0.6 %, as clearly disclosed in example IV, and therefore could not have been taken by surprise if the upper limit of 5 % were later to be reduced to 0.6 %.

1.12.4 Incorrect information in earlier application as filed but correct information directly and unambiguously derivable

In T 1088/06 an appeal was filed against the decision of the examining division refusing the European patent application, which had been filed as a divisional application, on the ground that the application extended beyond the content of the earlier application as filed. Both the expression " 10^{-4} to 10^{-9} " and the expression " 10^4 to 10^9 " had occurred several times in the earlier application; the divisional application referred to a range between about 10^4 to 10^9 Ohm/cm². The examining division held that the correct range could not be directly and unambiguously derived from the parent application as originally disclosed. The board could not agree. If information in the earlier application was **objectively recognisable** by the person skilled in the art as information that was **incorrect**, and if the person skilled in the art would derive the correct information directly and unambiguously,

using common general knowledge, and seen objectively and relative to the date of filing, from the whole of the documents of the earlier application as filed, then the correct information belonged to the content of the earlier application and might be used to decide whether a divisional application extends beyond the content of the earlier application as filed (Art. 76(1) EPC). In the case before it, the board concluded that the range mentioned in the divisional application did not introduce subject-matter extending beyond the earlier application as filed.

1.13. Disclosure in drawings

1.13.1 General

When examining whether there is support for a feature in a drawing the exact same standards must be applied as for the description: the crucial point is what the skilled person would derive directly and unambiguously from the drawing using common general knowledge (T 2537/10).

The case law according to T 169/83 (OJ 1985, 193) - which has been frequently cited -, T 523/88 and T 818/93 shows that the EPC does not prohibit the amendment of claims to include **features from drawings**, provided the structure and the function of such features were clearly, unmistakably and fully derivable from the drawings by the skilled person and not at odds with the other parts of the disclosure. Nor could any element be dropped.

Indeed, in T 169/83 (OJ 1985, 193), T 465/88 and T 308/90 it was pointed out that where drawings existed they were to be regarded as an integral part of the documents disclosing the invention. Drawings were to be **treated on an equal footing with the other parts of the application** (see also chapter II.E.1.2.1 "Description, claims and drawings"). Further, the fact that features were disclosed solely in the drawings did not preclude these features from becoming essential in the course of the proceedings (T 818/93). The features for which a skilled person could clearly derive the structure and function from the drawings could be used to define more precisely the subject-matter for which protection was sought (T 372/90).

In T 676/90 the board underlined that a drawing could never be interpreted in isolation from the overall content of the application but only in that general context. The content of an application was defined not only by features mentioned or shown therein but also by their relationship to each other.

In T 191/93 amendments were based exclusively on the original drawings and introduced only some of the features disclosed in the drawings. The board held that the subject-matter of the patent had been extended compared to the application as filed because it was not derivable from the drawings that the two newly introduced features could be **isolated from the other features** shown in the drawings. For further cases where the isolation of features from a drawing amounted to an unallowable intermediate generalisation, see T 1408/04 and T 983/12.

In T. 398/92 the patent claims as amended contained features that had not been mentioned *expressis verbis* in the written part of the original application but had been derived from the figures for the application as filed. The drawings in question illustrated the curves in a system of Cartesian co-ordinates with a precise, defined scale. The curves therefore could not be compared to the schematised representation of an invention given by a graph. The board recognised that the points of these curves were not purely intellectual graphic constructions but, on the contrary, corresponded to real experimental values, representing the percentages of a particular drug released in solution. Although these percentages were not mentioned *expressis verbis* in the original document, the board was of the opinion that for a skilled person they would have been clearly and unambiguously derivable from the scale given on the Y-axis, since the figures were sufficiently precise for the ordinate values to be read exactly and thus for the same numerical features as introduced in the claims to be derived from them. The incorporation into the text of the claims of the numerical features derived from the curves therefore did not contravene Art. 123(2) EPC 1973 (as far as a graph representing a mathematical equation is concerned, see T. 145/87).

In T. 1544/08 the board observed that, if drawings were originally filed **in colour** at the date of filing of an application, then the technical content of these original colour drawings should be determined when establishing the content of the application as filed, for the purpose of examining compliance of amendments with Art. 123(2) EPC.

1.13.2 Schematic drawings

In T. 748/91 the board, agreeing with the appellant, held that schematic drawings depicted all the essential features. The board reached the conclusion that size ratios could be inferred even from a schematic drawing as long as the delineation provided the relevant skilled person with discernible and reproducible technical teaching (with reference to T. 451/88). In the case at issue the description provided the skilled person a sufficient teaching for an unambiguous interpretation of the drawing.

In T. 497/97 the board noted that, since drawings were often approximate and therefore unreliable, they could only be used in interpreting amended claims if the description did not contain a more precise indication of what was meant.

Likewise, in T. 906/97 the board held that the parent application as filed failed to disclose unambiguously the position of a door. The only indication of this position could be found in some figures, and in the board's view there was no suggestion whatsoever in the description itself that this detail of the schematic representation was actually meant to correspond to a technical feature of the apparatus shown in the figures, rather than being merely an expression of the draughtsman's artistic freedom.

In T. 1148/12 the board distinguished the case at hand from the one in T. 748/91. In the case at issue in T. 1148/12, the schematic nature of the figures did not allow the skilled person to clearly and unmistakably derive the feature in question (parallel arrangement of electrodes), nor did the description of the original application allow him to clearly and unmistakably derive anything related to the function of the purported parallel arrangement.

In T 614/12 the board found that the drawing did not show any measurements or scale or give any other indication that it was an exact engineering drawing reproducing the construction elements to scale. It was thus no more than a schematic illustration of the kind commonly found in patent documentation. The imprecision of such an illustration made it impossible to measure angle sizes.

In T 398/00 the appellant sought to derive a feature (concerning the positioning of an engine) from the drawings. Referring to T 169/83 (OJ 1985, 193) the board explained that what would be required was that the person skilled in the art would clearly unmistakably recognise from the drawings, in the context of the description as a whole, that locating the engine according to this feature was the deliberate result of technical considerations directed to the solution of the technical problem involved. Given in particular the schematic nature of the illustration of the engine, this was however not the case. Cited in T 886/15.

1.13.3 Negative features

In T 170/87 (OJ 1989, 441) the board held that a figure which served only to give a schematic explanation of the principle of the subject-matter of the patent and not to represent it in every detail did not allow the sure conclusion to be drawn that the disclosed teaching purposively excluded a feature not represented. Such a "negative" feature (in this case, "with no internal fittings") could not subsequently be incorporated into the claim (see also T 410/91, T 1120/05, T 474/15 and T 621/15). Regarding the absence of a feature in a figure which served only to give a schematic explanation of the principle of the invention, see also T 264/99, in which the board found the circumstances to be different from those in T 170/87.

In T 1120/05 the invention concerned an "arrangement for and a method of managing a herd of freely walking animals" and the amendment introduced a negative feature namely "but not to the milking station". This negative feature was not expressly disclosed in the description and in the claims of the patent application as filed. Features could be taken from the drawings if their structure and function were clearly, unmistakably and fully derivable from the drawings. It was not possible to derive a negative or missing feature on its own, i.e. without the context of the other, existing features of the claim. Moreover, **arbitrarily** choosing one of many possible negative features was not permitted (see also T 777/07), because the skilled person not only had to realise the possible negative features, but – because they were derived from the drawings – he also had to establish which one of the features was essential to the invention and which ones were not. The board found that in the absence of a teaching from the description, the skilled person would be unable to establish the essential nature of a single negative feature, seen against a background of a multitude of potentially essential features, even if this selected single negative feature in the drawings could be recognised by the skilled person in the drawings.

1.14. Amending the description

1.14.1 Amendment to provide support for unsupported claim

T 133/85 (OJ 1988, 441) concerned a case where a feature was described as an essential feature of the invention but was not contained in the claim. The claim was therefore not supported by the description (Art. 84 EPC 1973). An amendment to the description to provide support for the claim was, however, not allowable under Art. 123(2) EPC 1973, because the amended description would contain subject-matter which extended beyond the content of the application as filed – namely information that such feature was not an essential feature of the invention.

1.14.2 Impact on the claimed subject-matter

The board in T 835/11 held (in relation to a divisional application) that an amendment to the description could result in an inadmissible extension only if it changed the subject-matter. That might be the case, for instance, if the description initially defined a feature in the claims more narrowly than its usual meaning; deleting the definition from the description could then result in an inadmissible extension of the patent's subject-matter. Removing or adding examples might also affect how the claims were understood and so also change the patent's subject-matter (see e.g. T 1239/03, in chapter II.E.1.14.4 below). The boards had also repeatedly held that reformulating the problem to be solved could inadmissibly extend the patent's subject-matter (see e.g. T 13/84, OJ 1986, 253, in chapter II.E.1.14.6). By contrast amendments to the description which had no effect on the claimed subject-matter were not open to objection. In the case in hand, Art. 100(c) EPC had not been infringed. See also chapter II.E.1.14.4 "Shift in the interpretation of a claim by amendment of the description"; however, see also chapter II.E.1.14.5 "Shift in the information provided by the examples after amendment of claims".

1.14.3 Adding prior art citations to the description – removing the wrong label "prior art"

For cases concerning the addition of prior art citations to the description, see above in this chapter II.E.1.11.5.

In T 1039/93 certain figures of the application **as filed** had been erroneously labelled as prior art while in fact representing in-house technical knowledge of the appellant that had not been made available to the public. The board did not object to the deletion of the labels "prior art" from the relevant figures since such deletion neither infringed Art. 123(2) EPC 1973 nor affected the disclosure of the state of the art; on the contrary such amendment was necessary to avoid giving an inaccurate representation of the state of the art. After the amendment the description correctly indicated the prior art as required by R. 27(1)(b) EPC 1973.

1.14.4 Shift in the interpretation of a claim by amendment of the description

In T 500/01 the board stated that a claim, the wording of which was essentially identical to a claim as originally filed, could nevertheless contravene the requirements of